

FEDERAL MARITIME COMMISSION

IMPACT PRODUCTS, LLC AND SAFETY ZONE, LLC,
Complainants

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 24-07

Served: February 14, 2024

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Impact Products, LLC and Safety Zone, LLC (the “Complainants”) against CMA CGM S.A. (the “Respondent”). Complainants state that the Commission has jurisdiction over the complaint pursuant to 46 U.S.C. 41301 through 41309 and personal jurisdiction over the Respondent as an ocean common carrier, as defined in 46 U.S.C. 40102(18), that has entered into a service contract, as defined in 46 U.S.C. 40102(21), with the Complainants.

Complainant Impact Products, LLC is a corporation located in Toledo, Ohio. Complainant Safety Zone, LLC is a corporation located in Guilford, Connecticut. Complainants are shippers as this term is defined under 46 U.S.C. 40102(23).

Complainants identify Respondent as a company existing under the laws of France with its principal place of business in Marseilles, France and as a global ocean carrier.

Complainants allege that Respondent violated 46 U.S.C. 41102(c) and 41104(a)(10) and 46 CFR 545.5. Complainants allege these violations arose from assessment of demurrage, detention, per diem, and yard storage charges during periods of time in which the charges were not

just or reasonable because of circumstances outside the control of the Complainants and its agents and service providers, and from the acts or omissions of the Respondent that led to the assessment of these charges.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/24-07/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by February 14, 2025, and the final decision of the Commission shall be issued by August 29, 2025.

David Eng
Secretary